

DELEGATED REPORT

APPLICATION NO	25/00855/FUL
EXPIRY DATE	26.01.2026
PROPOSAL	Erection of a detached single storey 3-bedroom self-build dwelling and construction of a detached single storey car port with access driveway and vehicular parking
LOCATION	124 Cheltenham Road Bishops Cleeve Cheltenham
RECOMMENDATION	Refuse
DATE OF RECOMMENDATION	12.01.2026

Planning Officer: Chloe Buckingham

Application Site

The application site relates to the end of the rear garden and a small parcel of land to the north that runs behind the rear gardens of the dwellings adjacent to the host dwelling (No 124) No.'s 122 and 120 Cheltenham Road. The site is characterised by a number of mature trees within the application site. The site is located within the defined development boundary and is not subject to any other designations of special control.

POLICIES AND GUIDANCE

National guidance National Planning Policy Framework and Planning Practice Guidance

Gloucester, Cheltenham and Tewkesbury Joint Core Strategy (JCS) - Adopted 11 December 2017

SP1 (The Need for New Development)
SP2 (Distribution of New Development)
SD3 (Sustainable Design and Construction)
SD4 (Design Requirements)
SD6 (Landscape)
SD10 (Residential Development)
SD11 (Housing mix and Standards)
SD14 (Health and Environmental Quality)
INF1 (Transport Network)
INF2 (Flood Risk Management)
INF3 (Green Infrastructure)

Tewkesbury Borough Plan 2011 - 2031 (TBP) – (June 2022)

RES2 (Settlement Boundaries)
RES5 (New Housing Development)
DES1 (Housing Space Standards)
ENV2 (Flood Risk and Water Management)
TRAC9 (Parking Provision)

Other Considerations

Cotswold Beechwood SAC Mitigation Strategy

PLANNING HISTORY

Application Number	Proposal	Decision	Decision Date
69/00007/OUT	Outline application for residential development. Construction of a new estate road.	REFUSE	21.01.1970
21/01491/FUL	Erection of a dwelling including associated parking and amenity space.	REFUSE	10.02.2022
22/00656/FUL	Proposed erection of dwelling including parking and amenity space.	REFUSE	09.12.2022

CONSULTATIONS AND REPRESENTATIONS

Bishops Cleeve Parish Council- Object to this application for the following reasons: Bishops Cleeve Parish Council do not believe that this application offers any significant improvement on the previous application which was refused because; The proposal, by virtue of the site parameters, its incongruous siting and design, would fail to respect the character of the area and would be contrary to the spatial pattern within the area. The contrived and cramped layout would fail to respect the development within the wider area and not constitute good design. The proposal would therefore have a harmful impact on the character and appearance of the area. The proposal is therefore contrary to Policy SD4 of the Gloucester, Cheltenham and Tewkesbury Joint Core Strategy 2011-2031 (2017), Policy RES5 of the Tewkesbury Borough Plan (June 2022) and the National Planning Policy Framework.

The current application places the dwelling in extremely close proximity to the rear boundaries and the three bedroom layout is cramped with the third bedroom failing to meet the minimum requirements specified in the 1985 Housing Act.

The Design and Access Statement compares the design with the property approved at 118 Cheltenham Road, yet this is a two bedroomed property on a larger site and with a bigger footprint.

The Parish Council note that the applicant wishes to remove a large section of mature boundary hedgerow and replace with close board fencing. This seems unnecessary even with the mitigation of a sedum roof and nesting boxes.

In addition, the Parish Council is concerned that the proposed access may not be wide enough to allow access and egress of emergency vehicles, and believe that this type of back land development is undesirable.

Gloucestershire County Highways – No objection subject to conditions.

Drainage - Consulted but no comments received.

Ecology - No objection subject to conditions.

Local residents – 2 letters of representation have been received from local residents objecting to the scheme on the following grounds:

- Concerns with loss of natural light.
- Concerns in relation to boundary treatments.
- Concerns with overlooking and loss of privacy.
- Concerns in regards to the proposed an existing drain near/on the site.
- Character and appearance of the dwelling out of keeping with the local context in terms of design, siting and materials.
- Loss of security.
- Noise.
- Impact on property value and marketability.
- Loss of view.

Five Year Housing Supply

The NPPF requires local planning authorities to demonstrate an up-to-date five year supply of deliverable housing sites. Where local authorities cannot demonstrate a five-year supply of deliverable housing sites, paragraph 11 of the NPPF sets out that housing policies contained within development plans should not be considered up-to-date.

Following the publication of the updated NPPF in December 2024, the Council's published five-year housing land supply figure has been superseded. The updated five-year housing land supply position against the new standard method confirms the Council's five-year supply of deliverable housing sites is 3.14 years. Officers consider this shortfall is significant. The Council's policies for the provision of housing are therefore out of date in accordance with footnote 8 of the NPPF.

Paragraph 11(d) of the NPPF therefore applies and states that where policies which are most important for determining the application are out of date, permission should be granted unless: i) the application of policies in this Framework that protect areas or assets of particular importance provides a strong reason for refusing the development proposed; or ii) any adverse impacts of doing so would significantly and demonstrably outweigh the benefits, when assessed against the policies in this Framework taken as a whole, having particular regard to key policies for directing development to sustainable locations, making effective use of land, securing well-designed places and providing affordable homes, individually or in combination.

PLANNING OFFICERS APPRAISAL AND CONCLUSIONS

Proposal

The application seeks the erection of a single storey 3no bedroom dwelling along with associated parking and amenity space on a plot of land to the rear of 120, 122 and 124 Cheltenham Road. It is noted that the proposed dwelling has a slightly reduced footprint from the previously refused application (22/00656/FUL) and the footprint now takes on an 'L'-shaped design. The roof has now changed to a flat roof with a height of approx. 3.5m which is lower than the previously refused application which was 6.6m to maximum roof ridge height and an eaves height of 2.7m.

The scheme is the resubmission of previously refused applications 21/01491/FUL and 22/00656/FUL. The alterations proposed as part of this scheme include a change in the layout and design and a reduction in footprint and height.

Principle

The JCS sets out the key spatial policies for the JCS area over the period of 2011-2031 and the preferred strategy to help meet the identified level of need. Policy SP1 sets out the spatial strategy for meeting the Boroughs housing needs. The site is located within the residential development boundary for Bishops Cleeve defined by the TBP.

Criterion 4 (ii) of Policy SD10 'Residential Development' of the JCS sets out that on sites that are neither allocated or previously-developed land, housing development will be permitted, except where otherwise restricted by policies within district plans, where it would represent infill within the existing built up areas of Tewkesbury Borough's towns and villages.

As the site is bordered by residential properties on three boundaries the development would represent infill and as such the principle of housing in this location would be acceptable.

However, whilst the principle of a new dwelling in this location may be acceptable there are other material planning considerations to be taken into account as set out below.

Design and Visual Amenity

Section 12 of the NPPF relates to "Achieving well Designed Places". Paragraph 131 sets out that the creation of high quality, beautiful and sustainable buildings and places is fundamental to what the planning and development process should achieve. Good design is a key aspect of sustainable development, creates better places in which to live and work and helps make development acceptable to communities and, at paragraph 139, explains that "Development that is not well designed should be refused, especially where it fails to reflect local design policies and government guidance on design, taking into account any local design guidance and supplementary planning documents such as design guides and codes."

Policy SD4 (Design Requirements) provides that new development should respond positively to, and respect the character of, the site and its surroundings, enhancing local distinctiveness, and addressing the urban structure and grain of the locality in terms of street pattern, layout, mass and form. It should be of a scale, type, density and materials appropriate to the site and its setting.

Criterion 6 of Policy SD10 'Residential Development' of the JCS states the residential development should seek to achieve maximum density compatible with good design, the protection of heritage assets, local amenity, the character and quality of the local environment, and the safety and convenience of the local and strategic road network. The policy goes on to state that residential development should seek to achieve maximum density compatible with good design, the protection of heritage assets, local amenity, the character and quality of the local environment, and the safety and convenience of the local and strategic road network.

Policy RES5 (New Housing Development) specifies that new housing development proposals should, inter alia: 1) be of a design and layout that respects the character, appearance and amenity of the surrounding area and is capable of being well integrated within it; 2) be of an appropriate scale having regard to the size, function and accessibility of the settlement and its character and amenity, unless otherwise directed by policies within the Development Plan; 3) not cause the unacceptable reduction of any open space (including residential gardens) which is important to the character and amenity of the area; 4) incorporate into the development any natural or built features on the site that are worthy of retention; 5) address any other environmental or material planning constraints relating to the site.

Application ref 22/00656/FUL was refused on the following grounds: *The proposal, by virtue of the site parameters, its incongruous siting and design, would fail to respect the character of the area and would be contrary to the spatial pattern within the area. The contrived and cramped layout would fail to respect the development within the wider area and not constitute good design. The proposal would therefore have a harmful impact on the character and appearance of the area. The proposal is therefore contrary to Policy SD4 of the Gloucester, Cheltenham and Tewkesbury Joint Core Strategy 2011-2031 (2017), Policy RES5 of the Tewkesbury Borough Plan (June 2022) and the National Planning Policy Framework.*

As stated in the previous reports: The parcel of land relates to an area to the rear of extensive long gardens that characterise the dwellings along this part of Cheltenham Road. The dwellings here, along the western side of Cheltenham Road within the immediate vicinity are generally substantial two-storey detached dwellings incorporating traditional features, including pitched roofs and either rendered or constructed out of red brick. The dwellings along this stretch benefit from extensive long garden plots. No.124 (the host dwelling) benefits from an additional piece of land that extends to the north nestled behind the rear gardens of No.'s 122 and 120 Cheltenham Road.

To the west of the site lies a modern development along 'The Nurseries'. The dwellings within this development are predominately two-storey detached constructed of mixed red brick with feature render. The existing rear boundary of No. 124 and the boundary of the proposed new dwelling to the west is shared with the rear boundaries of No's 29 – 32. These dwellinghouses have shorter garden lengths of approx. 11m.

Therefore, whilst the changes made to reduce the footprint and change the design to a flat-roof 'L-shaped' design with a lower roof height go some way to lessen the impact of the proposal, the proposed dwelling would still be against the grain of the spatial pattern within the area with properties fronting the street. The proposed plot would still be not in character with the immediate plots owed to the back-land nature of development, discordant design, materials and flat roof design.

As also noted in the previous proposal, there is an exception to the established spatial pattern of development within the area, which is that of the development at Centuar Mews off Cantors Drive to the south of the site approved under planning reference 10/00083/FUL. However this development relates well along Cantors Drive with No. 132 Cheltenham Road to the east and Abbots Mews development to the west of the site and maintains the prevailing character of the area.

The proposed dwelling and subsequent plot would still fail to be in-keeping with the spatial pattern within the area. Furthermore, the resultant plot would still be smaller in comparison to the existing ones within the immediate vicinity. The layout of the plot would still be contrary to the reasonably sized rear garden spaces which is prevalent within the immediate setting. Furthermore, whilst the footprint of the dwelling has been slightly reduced, the resultant development would still appear cramped due to its siting and proximity to the narrow site and its boundaries which is compounded by the proposed hardstanding parking area to the front of the site.

It is still considered that the proposed parking area to the front of the dwelling to the rear of the established residential development in the area is incongruous. The proposed access that would run along the neighbouring dwellings boundary to the north with No. 122 would be at odds with the surrounding character and would impact the living conditions of adjacent occupiers as a consequence of new vehicular movements within this otherwise quiet back garden area and in close proximity to the side elevations of the houses.

The overall design of the proposed dwelling would not be compatible with the local context, and the scheme is still considered to propose only minor alterations in comparison to the previously refused scheme. These amendments do not overcome this fundamental reason for refusal relating to the site parameters, its siting and design, and failure to respect the character of the area.

The contrived and cramped back-land layout would fail to respect the development within the wider area and not constitute good design.

Whilst it is noted that other planning approvals for residential development within the area have been permitted, within each of these applications there are significant differences in respect to the context, siting and layout of the development proposed. Furthermore, each application should be determined on its own merits.

It is considered that the proposal would be one of poor design, which would be out of keeping in its siting and incongruous in its siting and design which would fail to integrate with the character of the area, contrary to Policies SD4 and SD10 of the JCS together with Policy RES5 of the TBP.

Residential Amenity

JCS Policies SD4 and SD14 require development to enhance comfort, convenience and enjoyment through assessment of the opportunities for light, privacy and external space. Development should have no detrimental impact on the amenity of existing or new residents or occupants. This is echoed in Policy RES5 of the TBP.

Policy DES1 of the TBP explains that Tewkesbury Borough Council adopts the Government's nationally described space standards. All new residential development will be expected to meet these standards as a minimum. Any departure from the standards, whether for viability of physical achievability reasons, will need to be fully justified at planning application stage. New residential development will be expected to make adequate provision for private outdoor amenity space appropriate to the size and potential occupancy of the dwellings proposed.

Whilst objection comments are noted regarding loss of light, loss of privacy, noise and loss of security, it is noted that within the previous assessments on the two refused applications such issues were not considered to be detrimental. Furthermore, it is considered that the reduction in footprint and change to a flat roof design with a much lower overall height would continue to ensure that there would be no significant negative impacts in terms of loss of light, privacy and overlooking.

The noise levels are unlikely to cause any significant issues considering this is an application for only one dwelling within a built-up residential area though there would be some increase as a consequence of the new vehicular access and general activity associated with an additional household. There is also not considered to be any significant loss of security as a result of the scheme considering the small-scale nature of the proposal.

It is noted that the previous scheme (reference: 21/01491/FUL) was refused for the following reason: *By way of layout, the proposal results in an unacceptable level of natural light into and outlook from internal spaces detrimental to the enjoyment of the future occupant of the proposed dwelling contrary to Policies SD4 and SD14 of the Gloucester, Cheltenham and Tewkesbury Joint Core Strategy 2011-2031 and Emerging Policy RES5 of the Pre-Submission Tewkesbury Local Plan, October 2019.*

This scheme now amends the proposed layout further in that the main living area is now proposed to be a combined open plan kitchen/living/dining area located to the north. This area is to be served by a rooflight as well as bifold doors on the North elevation and windows on the east elevation. The bedrooms and bathroom are now proposed along the southern elevation of the property and also have sufficient windows allowing natural light. Whilst these amendments overcome the previous refusal reason, it is noted that bedroom 3 as annotated on the proposed floor plans falls short of the nationally described spaced standards for a single bedspace in terms of width and floor area. Therefore, whilst the scheme would have an acceptable impact on surrounding neighbours, the size of bedroom 3 is below the nationally described spaced standards for a single bedroom, contrary to policy DES1 of the TBP.

Highways Matters

The NPPF sets out development should only be prevented or refused on highways grounds where there would be an unacceptable impact on highway safety or the residual cumulative impacts of development are severe.

Policy INF1 of the JCS considers that developers provide safe and efficient access to the highway network and permission be granted only where the impact of the development is considered not to be severe. It further states that safe and efficient access to the highway network should be provided for all transport means.

The previously refused schemes ref 21/01491/FUL and 22/00656/FUL were considered acceptable on highways grounds at that time. There is no material changes to the resubmission which would give rise to any concerns, as such the scheme is acceptable on highways grounds. It is noted that County Highways have also recommended no objection subject to conditions and informatives which would be attached if the scheme were acceptable.

Ecology

Policy SD9 (Biodiversity and Geodiversity) specifies that the protection and enhancement of the biodiversity and geological resource of the JCS will be achieved by, inter alia, ensuring that European Protected Species and National Protected Species are safeguarded in accordance with the law, and by encouraging new development to contribute positively to biodiversity geodiversity whilst linking with wider networks of green infrastructure.

In this respect, Policy NAT1 of the TBP is also relevant and explains that proposals that will conserve, restore, and enhance, biodiversity will be permitted. Proposals will, where applicable, be required to deliver a biodiversity net gain across local and landscape scales, including designing wildlife into development proposals, the connection of sites and large-scale habitat restoration, enhancement, and habitat re-creation.

The scheme has been submitted with a Preliminary Ecological Appraisal (Arbor Vitae, May 2025) and the Council's Ecological Advisor was consulted. The site was surveyed in July 2025 and was found to comprise artificial unvegetated land, a vegetated garden, which includes a well-mown lawn, a small allotment and greenhouse, a shed and garden room, non-native hedgerows, a native hedgerow, and individual trees. Two trees and two groups of trees will be removed to facilitate the proposed development. This includes a small group of apple trees. It has been recommended that five native fruit trees be planted to compensate for this loss.

Sections of non-native hedgerow will be removed, and replacement planting, ideally with native species, has been recommended.

An ornamental fish pond is present on-site, but it will not be impacted by the proposals. It was assessed as having 'poor' suitability for great crested newts. There are no further ponds within 250m and great crested newts are considered likely absent.

None of the buildings on-site provide roosting opportunities for bats and none of the trees to be removed have potential roosting features, and a sensitive lighting scheme has been recommended.

The habitats on-site provide opportunities for hedgehog and suitable mitigation has been outlined. 2 x woodcrete bird boxes, 1 x swift brick and 1 x bee brick have been recommended as enhancements.

The application is exempt from mandatory Biodiversity Net Gain under the self-build exemption, and if the scheme were acceptable the applicant would be required to enter into a Unilateral Undertaking to ensure that the self-build element is secured.

Subject to compliance with the PEA, biodiversity enhancements and external lighting, the scheme is considered to have an acceptable ecological impact, in accordance with policy SD9 of the JCs and NAT1 of the TBP.

Cotswold Beechwoods Zone of Influence

Policy NAT5 of the TBP states that development will not be permitted where it would be likely to lead directly or indirectly to an adverse effect upon the integrity of the Cotswold Beechwoods Special Area of Conservation (SAC) (alone or in combination), and the effects cannot be mitigated. In order to retain the integrity of the SAC all development that leads to a net increase in dwellings will be required to mitigate any adverse effects of increased recreational pressure. Any proposals that would lead to an adverse effect must contribute towards mitigation specified in the SAC mitigation and implementation strategy or through a bespoke Habitats Regulations Assessment. Development which is likely to generate road traffic emissions to air which are capable of affecting the SAC will be screened against the Habitats Regulations Assessment Framework in line with Natural England's guidance 'Natural England's approach to advising competent authorities on the assessment of road traffic emissions under the Habitats Regulations (NEA001)'

As the site is within the Cotswold Beechwoods Zone of Influence, mitigation must be agreed and finalised. However, no mitigation plan has been put forward and as such the scheme is contrary to policy NAT5 of the TBP.

Other Matters

The previously refused schemes were otherwise considered acceptable on all other matters including Drainage and Flood Risk and Energy Efficiency. This remains the same with this application.

The objection comments received explain that the scheme would have a negative impact on the property value and marketability of surrounding properties and would also result in the loss of a view. However, these factors are not material planning considerations and as such have no bearing on the planning assessment.

Community Infrastructure Levy (CIL)

The development is CIL liable because it creates new dwelling(s). The relevant CIL forms have been submitted explaining that as the dwelling is a self-build it is exempt from CIL. However, it is noted that CIL Form 7 has not been submitted and the mechanism by which to secure the self-build element has not been secured.

Conclusion/Planning Balance

In light of the above, it is considered that the proposed development conflicts with the housing policies of the Joint Core Strategy, Tewkesbury Borough Plan and the NPPF. The Council cannot currently demonstrate a five-year supply of housing. The planning balance in this case is a balance of benefits against harm. In accordance with Section 38(6) of the Planning and Compulsory Purchase Act 2004, and section 70(2) of The Town and Country Planning Act 1990, the applications must be determined in accordance with the development plan, unless there are material circumstances which 'indicate otherwise'.

Benefits

The development would contribute towards the supply of market housing to help meet the objectively assessed need. Although the proposal would contribute to housing stock in circumstances where there is an existing shortfall, given that it would only result in the addition of one dwelling this benefit is very limited along with limited economic, social and environmental benefits. For example, it would provide some jobs and create demand for materials during the conversion phase, and once occupied would support services and local facilities. It could also provide opportunities to enhance biodiversity. However, given the small scale of the proposed development when combined these factors are only afforded limited weight in the determination of the application. Whilst the scheme has been described as being self-build the method to secure this (legal agreement) has not been agreed and as such this has limited weight in the benefits. It must also be noted that the benefit of a property being described as self-build does not override all other policies.

Harms

The changes to the proposal have failed to overcome the previous refusal reason. It is still considered that the site parameters, and the incongruous siting and design of the proposed dwelling, would fail to respect the character of the area and would be contrary to the spatial pattern within the area. The contrived and cramped layout would fail to respect the development within the wider area and not constitute good design. The proposal would therefore have a harmful impact on the character and appearance of the area. The proposal is therefore contrary to Policy SD4 of the Gloucester, Cheltenham and Tewkesbury Joint Core Strategy 2011-2031 (2017), Policy RES5 of the Tewkesbury Borough Plan (June 2022) and the provisions of the National Planning Policy Framework.

Bedroom 3 as annotated on the proposed floor plans falls short of the nationally described space standards for a single bedspace in terms of width and floor area, contrary to policy DES1 of the TBP.

As the site is within the Cotswold Beechwoods Zone of Influence, mitigation must be agreed and finalised. However, no mitigation plan/relevant financial contribution (as set out within the Cotswold Beechwoods SAC Mitigation Strategy) has been put forward and as such the scheme is contrary to policy NAT5 of the TBP.

Neutral

The impact upon highways, drainage and ecology are deemed to be acceptable, subject to conditions.

Conclusion

It is concluded that the planning balance falls against the proposal. The proposal would be contrary to the provisions of the development plan taken as a whole and is not supported by the Framework. The proposal for the erection of one dwelling holds very limited weight (in the context of the overall housing shortfall), however, it is considered that this weight would not outweigh the conflict with the Council's housing design and residential amenity policies. Therefore, there are no material considerations which indicate that the determination of the application should be other than in accordance with the development plan.

REASONS FOR REFUSAL

1. The proposal, by virtue of the site parameters, its incongruous siting and flat roof design, would fail to respect the character of the area and would be contrary to the spatial pattern within the area. The contrived and cramped layout would fail to respect the development within the wider area and not constitute good design. The proposal would therefore have a harmful impact on the character and appearance of the area. The proposal is therefore contrary to Policy SD4 of the Gloucester, Cheltenham and Tewkesbury Joint Core Strategy 2011-2031 (2017), Policy RES5 of the Tewkesbury Borough Plan (June 2022) and the National Planning Policy Framework.
2. Bedroom 3 as annotated on the proposed floor plans falls short of the nationally described space standards for a single bedspace in terms of width and floor area and would provide poor living conditions for future occupiers, contrary to policy DES1 of the Tewkesbury Borough Plan 2011-2031 (2022).
3. The site is located within the Cotswold Beechwoods Zone of Influence and no mitigation has been agreed and/or finalised, contrary to policy NAT5 of the Tewkesbury Borough Plan 2011-2031 (2022).